

August 24, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003956 Citibank, N.A. vs. Sonia Morales Cruz

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for November 20, 2026 at 11:00 a.m.

2. CL0003991 Wells Fargo Bank, N.A. vs. Phyllis Carr, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. The Court notes, while there are two Affidavits of Unsuccessful Service on file, they both reflect only three service attempts in May 2026 with no additional information regarding efforts to locate and serve Defendant Carr in over four months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for December 18, 2026 at 11:00 a.m.

3. CU0002725 Bestor, Amanda v. Mueller, Robert et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for December 18, 2026 at 9:00 a.m.

4. CU0002780 Juan Carlos vs. KELLY BROTHERS PAINTING, INC., a California corporation et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants despite the fact this case has been pending for almost four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for September 18, 2026 at 9:00 a.m.

5. CL0003437 Capital One, N.A. successor by merger to Discover Bank vs. Michelle Mattingly

On the Court's motion, the hearing on Defendant's motion to quash service of summons and compliant and request for dismissal is continued to Monday, September 28, 2026, at 1:30 p.m. in Department A. The proof of service of the motion is insufficient, as described below. Therefore, Defendant will need to re-notice the matter for hearing.

The proof of service included in Defendant's motion is undated, signed with Defendant's /s/, and indicates service to "info@gurstel.com via the court's electronic filing system." On July 22, 2026, the Court issued a notice of rejection of the Notice of Service, stating the papers do not comply with California Rules of Court 2.100 et seq, and that signatures must be original or comply with the requirements for facsimile filing. Thus, Defendant's proof of service is deficient in that it was undated, it indicates service to an email address not listed on Plaintiff's complaint, and does not include an original signature or comply with the requirements for facsimile filing.

6. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

Plaintiffs' unopposed motion to compel Defendants B&W Resorts, Inc. and Sinor, Sr.'s responses and further responses to special interrogatories and form interrogatories; and further responses to requests for admissions are granted. Defendants are ordered to serve code-compliant further verified responses to Form Interrogatory No. 4.1; Special Interrogatories Nos. 1, 8, 9, 11, 12, 13, 14, 15, 16, 17, 18, 34, 35, 36, 38, 40, 43, 45, 47, and 52; and Requests for Admission Nos. 3, 3*, 4, 5, 6, 10, 11, 23, 24, 25, 32, 33, 34, 37, 40, 41, 42, 43, 44, 45, 46, 53, 54, and 55 within 30 days of the date of this order. The Court awards Plaintiffs sanctions in the amount of \$2,160.00 within 30 days of the date of this order.

Form Interrogatories

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds that: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general."

Upon receipt of a response, the propounding party may move to compel further response if it deems that an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. CCP §2030.300(a). Any motion to compel further answers to interrogatories must be filed within 45 days of receipt of response unless the parties agree to extend the time in writing. CCP § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

Analysis

Form Interrogatory ("FI") No. 4.1 asks for information relating to the existence of insurance coverage for the damages, claims, or actions arising out of the incidents in the complaint.